



Bill Number: S.B. 1241

Bolick Floor Amendment

Reference to: printed bill

Amendment drafted by: Leg. Council

FLOOR AMENDMENT EXPLANATION

1. Allows a municipality or county to maintain a registration process to verify that a private permitting provider meets the statutory provider requirements.
2. Requires the municipality or county, if a registration process is maintained, to post on its website a list of private permitting providers that are registered through the registration process.
3. Requires, if a registration process is maintained, private permitting that is included in the municipality's or county's posted list of registered providers or that is registered through another municipality or county to be available to perform a building plan review or inspection.
4. Allows a municipality or county that has abated or removed a nuisance that was the subject of a building plan review or inspection that was conducted by a private permitting provider to prohibit the provider from conducting building plan reviews or inspections in that municipality or county.
5. Allows a private permitting provider that is prohibited from conducting building plan reviews or inspections to appeal the prohibition to the governing bodies of the municipality or county.
6. Requires the municipality or county, at the private permitting provider's request, to provide the private permitting provider with a method to remove the probation.
7. States that the private permitting provider requirements do not limit or affect the municipality's or county's ability to define, abate or remove nuisances and punish persons committing nuisances.
8. Makes conforming changes.

BOLICK FLOOR AMENDMENT
SENATE AMENDMENTS TO S.B. 1241
(Reference to printed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

~~[GREEN STRIKEOUT IN BRACKETS]~~ indicates new text removed from statute or previously enacted session law.

~~[Green strikeout in brackets]~~ indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

~~<<Green strikeout in carets>>~~ indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Title 9, chapter 4, article 6, Arizona Revised Statutes,
3 is amended by adding section 9-461.21, to read:

4 9-461.21. Private permitting providers; building permits
5 certificates of completion; liability insurance;
6 code and fee publication; registration; nuisance
7 removal; prohibition; powers; definitions

8 A. FOR ANY SINGLE-TRADE RESIDENTIAL CONSTRUCTION PROJECT, THE
9 PROPERTY OWNER OR THE PROPERTY OWNER'S CONTRACTOR OR AGENT MAY ELECT TO
10 USE A PRIVATE PERMITTING PROVIDER TO CONDUCT A BUILDING PLAN REVIEW OR
11 INSPECTION WITHOUT APPROVAL FROM THE MUNICIPALITY.

12 B. ON COMPLETION OF A BUILDING PLAN REVIEW FOR A SINGLE-TRADE
13 RESIDENTIAL CONSTRUCTION PROJECT, IF A PRIVATE PERMITTING PROVIDER HAS
14 DETERMINED THAT THE BUILDING PLAN COMPLIES WITH APPLICABLE BUILDING CODES,
15 THE PRIVATE PERMITTING PROVIDER SHALL ISSUE A PRIVATE PERMIT. THE PRIVATE
16 PERMITTING PROVIDER SHALL SUBMIT A COPY OF THE PRIVATE PERMIT TO THE
17 MUNICIPALITY WITHIN FORTY-EIGHT HOURS AFTER ISSUING THE PRIVATE PERMIT.
18 THE MUNICIPALITY MAY NOT REQUIRE THE PRIVATE PERMITTING PROVIDER TO SUBMIT
19 THE BUILDING PLAN TO THE MUNICIPALITY FOR REVIEW. THE MUNICIPALITY SHALL
20 ACCEPT AND TRACK THE PRIVATE PERMIT IN THE SAME MANNER AS A BUILDING
21 PERMIT THAT IS ISSUED BY THE MUNICIPALITY.

22 C. ON COMPLETION OF AN INSPECTION OF A SINGLE-TRADE RESIDENTIAL
23 CONSTRUCTION PROJECT, IF A PRIVATE PERMITTING PROVIDER DETERMINES THAT THE
24 SINGLE-TRADE RESIDENTIAL CONSTRUCTION PROJECT COMPLIES WITH THE BUILDING
25 PERMIT APPLICATION AND ALL APPLICABLE BUILDING CODES, THE PRIVATE
26 PERMITTING PROVIDER SHALL ISSUE A PRIVATE CERTIFICATE OF COMPLETION. THE
27 PRIVATE PERMITTING PROVIDER MAY USE PHOTOGRAPHS, RECORDED VIDEOS OR LIVE
28 VIDEO STREAMS TO CONDUCT THE INSPECTION. THE PRIVATE PERMITTING PROVIDER
29 SHALL SUBMIT A COPY OF THE PRIVATE CERTIFICATE OF COMPLETION TO THE

1 MUNICIPALITY WITHIN FORTY-EIGHT HOURS AFTER ISSUING THE PRIVATE
2 CERTIFICATE OF COMPLETION. THE MUNICIPALITY SHALL ACCEPT AND TRACK THE
3 PRIVATE CERTIFICATE OF COMPLETION IN THE SAME MANNER AS A CERTIFICATE OF
4 COMPLETION THAT IS ISSUED BY THE MUNICIPALITY.

5 D. A MUNICIPALITY MAY NOT IMPOSE ANY FEES RELATED TO THE REVIEW OR
6 PROCESSING OF A PRIVATE PERMIT OR PRIVATE CERTIFICATE OF COMPLETION THAT
7 IS ISSUED BY A PRIVATE PERMITTING PROVIDER OTHER THAN REASONABLE RECORDING
8 FEES.

9 E. A MUNICIPALITY MAY NOT TAKE ANY DISCRIMINATORY ACTION AGAINST
10 THE PROPERTY OWNER OR THE PROPERTY OWNER'S CONTRACTOR OR AGENT FOR USING A
11 PRIVATE PERMITTING PROVIDER.

12 F. A PRIVATE PERMITTING PROVIDER MAY USE SOFTWARE THAT IS DESIGNED
13 TO AUTOMATE THE REQUIRED REVIEW AND BUILDING PERMIT OR CERTIFICATE OF
14 COMPLETION PROCESS WITHOUT THE PERFORMANCE OF AN ADDITIONAL MANUAL REVIEW
15 BY THE PRIVATE PERMITTING PROVIDER.

16 G. A PRIVATE PERMITTING PROVIDER SHALL MAINTAIN APPLICABLE
17 PROFESSIONAL LIABILITY INSURANCE IN THE AMOUNT ESTABLISHED BY THE PRIVATE
18 PERMITTING PROVIDER'S REGISTRATION OR CERTIFICATION REGULATIONS.

19 H. A MUNICIPALITY SHALL POST ON THE MUNICIPALITY'S WEBSITE ALL
20 BUILDING CODES AND PERMITTING FEE SCHEDULES. IF A MUNICIPALITY DOES NOT
21 POST ALL BUILDING CODES AND PERMITTING FEE SCHEDULES ON THE MUNICIPALITY'S
22 WEBSITE, A PRIVATE PERMITTING PROVIDER MAY RELY ON APPLICABLE
23 INTERNATIONAL MODEL BUILDING SAFETY CODES TO DETERMINE CODE COMPLIANCE AND
24 CONDUCT AN INSPECTION. A MUNICIPALITY THAT HAS NOT POSTED ALL BUILDING
25 CODES AND PERMITTING FEE SCHEDULES ON THE MUNICIPALITY'S WEBSITE MAY NOT
26 CHARGE A PERMITTING FEE FOR A SINGLE-TRADE RESIDENTIAL CONSTRUCTION
27 PROJECT THAT IS PERMITTED OR INSPECTED PURSUANT TO THIS SECTION.

28 I. A MUNICIPALITY MAY MAINTAIN A REGISTRATION PROCESS TO VERIFY
29 THAT A PRIVATE PERMITTING PROVIDER MEETS THE REQUIREMENTS OF THIS SECTION.
30 IF A MUNICIPALITY MAINTAINS A REGISTRATION PROCESS PURSUANT TO THIS
31 SUBSECTION, THE MUNICIPALITY SHALL POST ON THE MUNICIPALITY'S WEBSITE A
32 LIST OF PRIVATE PERMITTING PROVIDERS THAT ARE REGISTERED THROUGH THE
33 MUNICIPALITY'S REGISTRATION PROCESS. IF A MUNICIPALITY MAINTAINS A
34 REGISTRATION PROCESS, A PRIVATE PERMITTING PROVIDER THAT IS INCLUDED IN
35 THE MUNICIPALITY'S POSTED LIST OF REGISTERED PRIVATE PERMITTING PROVIDERS
36 OR THAT IS REGISTERED THROUGH ANOTHER MUNICIPALITY OR COUNTY SHALL BE
37 AVAILABLE TO PERFORM A BUILDING PLAN REVIEW OR INSPECTION.

38 J. NOTWITHSTANDING SUBSECTION I OF THIS SECTION, A MUNICIPALITY
39 THAT HAS ABATED OR REMOVED A NUISANCE THAT WAS THE SUBJECT OF A BUILDING
40 PLAN REVIEW OR INSPECTION THAT WAS CONDUCTED BY A PRIVATE PERMITTING
41 PROVIDER PURSUANT TO THIS SECTION MAY PROHIBIT THAT PRIVATE PERMITTING
42 PROVIDER FROM CONDUCTING BUILDING PLAN REVIEWS OR INSPECTIONS IN THAT
43 MUNICIPALITY. A PRIVATE PERMITTING PROVIDER THAT IS PROHIBITED FROM
44 CONDUCTING BUILDING PLAN REVIEWS OR INSPECTIONS PURSUANT TO THIS
45 SUBSECTION MAY APPEAL THE PROHIBITION TO THE GOVERNING BODIES OF THE

1 MUNICIPALITY. AT THE PRIVATE PERMITTING PROVIDER'S REQUEST, THE
2 MUNICIPALITY SHALL PROVIDE THE PRIVATE PERMITTING PROVIDER WITH A METHOD
3 TO REMOVE THE PROHIBITION.

4 K. THIS SECTION DOES NOT LIMIT OR AFFECT A MUNICIPALITY'S ABILITY
5 TO DEFINE, ABATE OR REMOVE NUISANCES AND PUNISH PERSONS COMMITTING
6 NUISANCES PURSUANT TO SECTION 9-240, SUBSECTION B, PARAGRAPH 21,
7 SUBDIVISION (a).]

8 ~~[T.]~~ [L.] FOR THE PURPOSES OF THIS SECTION:

9 1. "BUILDING CODE" INCLUDES:

- 10 (a) PLUMBING AND MECHANICAL CODES.
11 (b) ELECTRIC CODES.
12 (c) RESIDENTIAL CONSTRUCTION CODES.
13 (d) ENERGY CONSERVATION CODES.
14 (e) ZONING AND PLANNING CODES.
15 (f) BUILDING CONSTRUCTION CODES.
16 (g) PROPERTY MAINTENANCE CODES.
17 (h) ANTIBLIGHT CODES.

18 2. "PRIVATE CERTIFICATE OF COMPLETION" MEANS A CERTIFICATE OF
19 COMPLETION THAT IS ISSUED BY A PRIVATE PERMITTING PROVIDER.

20 3. "PRIVATE PERMIT" MEANS A BUILDING PERMIT THAT IS ISSUED BY A
21 PRIVATE PERMITTING PROVIDER.

22 4. "PRIVATE PERMITTING PROVIDER" MEANS EITHER OF THE FOLLOWING:

- 23 (a) A PERSON OR FIRM THAT IS REGISTERED PURSUANT TO TITLE 32,
24 CHAPTER 1 TO PRACTICE ARCHITECTURE OR ENGINEERING.
25 (b) AN INSPECTOR OR PLANS EXAMINER WHO IS CERTIFIED BY AN
26 ORGANIZATION THAT DEVELOPS MODEL CODES AND STANDARDS FOR BUILDING SAFETY.

27 5. "SINGLE-TRADE RESIDENTIAL CONSTRUCTION PROJECT":

28 (a) MEANS ANY CONSTRUCTION PROJECT ON THE PROPERTY OF A
29 SINGLE-FAMILY OR MULTIFAMILY RESIDENTIAL DWELLING UNIT THAT REQUIRES A
30 BUILDING PERMIT AND THAT IS LIMITED TO A SINGLE CONSTRUCTION DISCIPLINE.

31 (b) INCLUDES ERECTING, INSTALLING, ENLARGING, ALTERING, REPAIRING,
32 REMOVING, CONVERTING OR REPLACING:

- 33 (i) A SINGLE UTILITY SYSTEM.
34 (ii) A HEATING, VENTILATION OR AIR CONDITIONING SYSTEM.
35 (iii) A WATER HEATER OR WATER-TREATMENT APPLIANCE.
36 (iv) A SOLAR SYSTEM PHOTOVOLTAIC OR THERMAL SYSTEM, AN ENERGY
37 STORAGE SYSTEM OR A COMBINATION.
38 (v) ROOFING.
39 (vi) EXTERIOR OPENINGS.
40 (vii) STUCCO, PLASTER OR SIDING.
41 (viii) FENCING.

1 Sec. 2. Title 11, chapter 6, article 1, Arizona Revised Statutes,
2 is amended by adding section 11-810.02, to read:

3 11-810.02. Private permitting providers; building permits;
4 certificates of completion; liability insurance;
5 code and fee publication; registration; nuisance
6 removal; prohibition; powers; definitions

7 A. FOR ANY SINGLE-TRADE RESIDENTIAL CONSTRUCTION PROJECT, THE
8 PROPERTY OWNER OR THE PROPERTY OWNER'S CONTRACTOR OR AGENT MAY ELECT TO
9 USE A PRIVATE PERMITTING PROVIDER TO CONDUCT A BUILDING PLAN REVIEW OR
10 INSPECTION WITHOUT APPROVAL FROM THE COUNTY.

11 B. ON COMPLETION OF A BUILDING PLAN REVIEW FOR A SINGLE-TRADE
12 RESIDENTIAL CONSTRUCTION PROJECT, IF A PRIVATE PERMITTING PROVIDER HAS
13 DETERMINED THAT THE BUILDING PLAN COMPLIES WITH APPLICABLE BUILDING CODES,
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15 PERMITTING PROVIDER SHALL SUBMIT A COPY OF THE PRIVATE PERMIT TO THE
16 COUNTY WITHIN FORTY-EIGHT HOURS AFTER ISSUING THE PRIVATE PERMIT. THE
17 COUNTY MAY NOT REQUIRE THE PRIVATE PERMITTING PROVIDER TO SUBMIT THE
18 BUILDING PLAN TO THE COUNTY FOR REVIEW. THE COUNTY SHALL ACCEPT AND TRACK
19 THE PRIVATE PERMIT IN THE SAME MANNER AS A BUILDING PERMIT THAT IS ISSUED
20 BY THE COUNTY.

21 C. ON COMPLETION OF AN INSPECTION OF A SINGLE-TRADE RESIDENTIAL
22 CONSTRUCTION PROJECT, IF A PRIVATE PERMITTING PROVIDER DETERMINES THAT THE
23 SINGLE-TRADE RESIDENTIAL CONSTRUCTION PROJECT COMPLIES WITH THE BUILDING
24 PERMIT APPLICATION AND ALL APPLICABLE BUILDING CODES, THE PRIVATE
25 PERMITTING PROVIDER SHALL ISSUE A PRIVATE CERTIFICATE OF COMPLETION. THE
26 PRIVATE PERMITTING PROVIDER MAY USE PHOTOGRAPHS, RECORDED VIDEOS OR LIVE
27 VIDEO STREAMS TO CONDUCT AN INSPECTION. THE PRIVATE PERMITTING PROVIDER
28 SHALL SUBMIT A COPY OF THE PRIVATE CERTIFICATE OF COMPLETION TO THE COUNTY
29 WITHIN FORTY-EIGHT HOURS AFTER ISSUING THE PRIVATE CERTIFICATE OF
30 COMPLETION. THE COUNTY SHALL ACCEPT AND TRACK THE PRIVATE CERTIFICATE OF
31 COMPLETION IN THE SAME MANNER AS A CERTIFICATE OF COMPLETION THAT IS
32 ISSUED BY THE COUNTY.

33 D. A COUNTY MAY NOT IMPOSE ANY FEES RELATED TO THE REVIEW OR
34 PROCESSING OF A PRIVATE PERMIT OR PRIVATE CERTIFICATE OF COMPLETION THAT
35 IS ISSUED BY A PRIVATE PERMITTING PROVIDER OTHER THAN REASONABLE RECORDING
36 FEES.

37 E. A COUNTY MAY NOT TAKE ANY DISCRIMINATORY ACTION AGAINST THE
38 PROPERTY OWNER OR THE PROPERTY OWNER'S CONTRACTOR OR AGENT FOR USING A
39 PRIVATE PERMITTING PROVIDER.

40 F. A PRIVATE PERMITTING PROVIDER MAY USE SOFTWARE THAT IS DESIGNED
41 TO AUTOMATE THE REQUIRED REVIEW AND BUILDING PERMIT OR CERTIFICATE OF
42 COMPLETION PROCESS WITHOUT THE PERFORMANCE OF AN ADDITIONAL MANUAL REVIEW
43 BY THE PRIVATE PERMITTING PROVIDER.

1 G. A PRIVATE PERMITTING PROVIDER SHALL MAINTAIN APPLICABLE
2 PROFESSIONAL LIABILITY INSURANCE IN THE AMOUNT ESTABLISHED BY THE PRIVATE
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4 H. A COUNTY SHALL POST ON THE COUNTY'S WEBSITE ALL BUILDING CODES
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6 CODES AND PERMITTING FEE SCHEDULES ON THE COUNTY'S WEBSITE, A PRIVATE
7 PERMITTING PROVIDER MAY RELY ON APPLICABLE INTERNATIONAL MODEL BUILDING
8 SAFETY CODES TO DETERMINE CODE COMPLIANCE AND CONDUCT AN INSPECTION. A
9 COUNTY THAT HAS NOT POSTED ALL BUILDING CODES AND PERMITTING FEE SCHEDULES
10 ON THE COUNTY'S WEBSITE MAY NOT CHARGE A PERMITTING FEE FOR A SINGLE-TRADE
11 RESIDENTIAL CONSTRUCTION PROJECT THAT IS PERMITTED OR INSPECTED PURSUANT
12 TO THIS SECTION.

13 [I. A COUNTY MAY MAINTAIN A REGISTRATION PROCESS TO VERIFY THAT A
14 PRIVATE PERMITTING PROVIDER MEETS THE REQUIREMENTS OF THIS SECTION. IF A
15 COUNTY MAINTAINS A REGISTRATION PROCESS PURSUANT TO THIS SUBSECTION, THE
16 COUNTY SHALL POST ON THE COUNTY'S WEBSITE A LIST OF PRIVATE PERMITTING
17 PROVIDERS THAT ARE REGISTERED THROUGH THE COUNTY'S REGISTRATION PROCESS.
18 IF A COUNTY MAINTAINS A REGISTRATION PROCESS, A PRIVATE PERMITTING
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20 PRIVATE PERMITTING PROVIDERS OR THAT IS REGISTERED THROUGH ANOTHER COUNTY
21 OR MUNICIPALITY SHALL BE AVAILABLE TO PERFORM A BUILDING PLAN REVIEW OR
22 INSPECTION.

23 J. NOTWITHSTANDING SUBSECTION I OF THIS SECTION, A COUNTY THAT HAS
24 ABATED OR REMOVED A NUISANCE THAT WAS THE SUBJECT OF A BUILDING PLAN
25 REVIEW OR INSPECTION THAT WAS CONDUCTED BY A PRIVATE PERMITTING PROVIDER
26 PURSUANT TO THIS SECTION MAY PROHIBIT THAT PRIVATE PERMITTING PROVIDER
27 FROM CONDUCTING BUILDING PLAN REVIEWS OR INSPECTIONS IN THAT COUNTY. A
28 PRIVATE PERMITTING PROVIDER THAT IS PROHIBITED FROM CONDUCTING BUILDING
29 PLAN REVIEWS OR INSPECTIONS PURSUANT TO THIS SUBSECTION MAY APPEAL THE
30 PROHIBITION TO THE GOVERNING BODY OF THE COUNTY. AT THE PRIVATE
31 PERMITTING PROVIDER'S REQUEST, THE COUNTY SHALL PROVIDE THE PRIVATE
32 PERMITTING PROVIDER WITH A METHOD TO REMOVE THE PROHIBITION.

33 K. THIS SECTION DOES NOT LIMIT OR AFFECT A COUNTY'S ABILITY TO
34 DEFINE, ABATE OR REMOVE NUISANCES AND PUNISH PERSONS COMMITTING
35 NUISANCES.]

36 ~~[F.]~~ [L.] FOR THE PURPOSES OF THIS SECTION:

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7 CHAPTER 1 TO PRACTICE ARCHITECTURE OR ENGINEERING.
8 (b) AN INSPECTOR WHO IS CERTIFIED BY AN ORGANIZATION THAT DEVELOPS
9 MODEL CODES AND STANDARDS FOR BUILDING SAFETY OR BY A NATIONAL
10 PROFESSIONAL ELECTRICAL TRADE ASSOCIATION.
11 5. "SINGLE-TRADE RESIDENTIAL CONSTRUCTION PROJECT":
12 (a) MEANS ANY CONSTRUCTION PROJECT ON THE PROPERTY OF A
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14 BUILDING PERMIT AND THAT IS LIMITED TO A SINGLE CONSTRUCTION DISCIPLINE.
15 (b) INCLUDES ERECTING, INSTALLING, ENLARGING, ALTERING, REPAIRING,
16 REMOVING, CONVERTING OR REPLACING:
17 (i) A SINGLE UTILITY SYSTEM.
18 (ii) A HEATING, VENTILATION OR AIR CONDITIONING SYSTEM.
19 (iii) A WATER HEATER OR WATER-TREATMENT APPLIANCE.
20 (iv) A SOLAR PHOTOVOLTAIC OR THERMAL SYSTEM, AN ENERGY STORAGE
21 SYSTEM OR A COMBINATION SYSTEM.
22 (v) ROOFING.
23 (vi) EXTERIOR OPENINGS.
24 (vii) STUCCO, PLASTER OR SIDING.
25 (viii) FENCING.

26 Enroll and engross to conform
27 Amend title to conform

SHAWNNA BOLICK

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